



Kingston upon Hull City Council Act 1989

CHAPTER vi

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ELIZABETH II



1989 CHAPTER vi

An Act to authorise go-kart racing on certain streets in the city of Kingston upon Hull; to confer powers on the Kingston upon Hull City Council in relation thereto; and for other purposes. A.D. 1989.
[3rd July 1989]

WHEREAS—

(1) The city of Kingston upon Hull (hereinafter referred to as “the city”) is under the management and local government of the Kingston upon Hull City Council (hereinafter referred to as “the Council”);

(2) The city is a major commercial and industrial centre and with a view to promoting the city, encouraging tourism and attracting business it is expedient that the Council be authorised to provide or arrange for the provision of go-kart races on certain streets in the city:

(3) For the purposes of this Act it is expedient to empower the Council on certain days and at certain times to close to the public or to restrict access to the whole or parts of certain streets in the city described in Schedule 1 to this Act (hereinafter referred to as “the scheduled streets”);

(4) It is expedient that the other provisions contained in this Act be enacted:

(5) The purposes of this Act cannot be effected without the authority of Parliament:

(6) A plan showing the scheduled streets and the part of the scheduled streets which may be used for go-kart racing in the exercise of the powers of this Act was duly deposited in the office of the Clerk of the Parliaments and in the Private Bill Office, House of Commons and with the proper officer of the Humberside County Council, which plan is in this Act referred to as “the scheduled streets plan”:

1972 c. 70. (7) In relation to the promotion of the Bill for this Act the requirements of section 239 of the Local Government Act 1972 have been observed:

May it therefore please Your Majesty that it may be enacted, and be it enacted, by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

Short title. 1. This Act may be cited as the Kingston upon Hull City Council Act 1989.

Interpretation. 2.—(1) In this Act, unless otherwise expressly provided or the subject or context otherwise requires, the following expressions have the meanings hereby respectively assigned to them:—

“the adjoining streets” means the streets or parts of streets in the city described in Part II of Schedule 1 to this Act and shown coloured blue on the scheduled streets plan;

“apparatus” means—

(a) in relation to a public gas supplier, mains, pipes and other apparatus belonging to or maintained by that supplier;

1882 c. 56.

(b) in relation to the Yorkshire Electricity Board, any electric line or works (as respectively defined in the Electric Lighting Act 1882) belonging to or maintained by the Yorkshire Electricity Board;

(c) in relation to the Yorkshire Water Authority, works, mains, pipes and other apparatus belonging to or maintained by the Yorkshire Water Authority for the purposes of any of their functions;

1984 c. 12.

(d) in relation to a public telecommunications operator, telecommunication apparatus within the meaning given by paragraph 1 (1) of Schedule 2 to the Telecommunications Act 1984 including such apparatus belonging to or used by British Telecommunications plc;

and includes any works constructed for the lodging therein of apparatus;

“the authorised day” has the meaning given by section 3 (Authorised day) of this Act;

“building” includes any structure or erection and any part of a building as defined;

“the circuit streets” means the streets or parts of streets in the city described in Part I of Schedule 1 to this Act and shown coloured pink on the scheduled streets plan;

“the city” means the city of Kingston upon Hull;

“contravention” includes failure to comply;

“the Council” means the Kingston upon Hull City Council;

1947 c. 41.

“fire authority” means the authority discharging in the city the functions of fire authority under the Fire Services Act 1947;

“go-kart” means a vehicle which possesses all the following characteristics, namely:—

(a) it has four non-aligned wheels constantly in touch with the ground;

(b) it is propelled by its own means and continuously takes a real bearing on the ground either mechanically or indirectly by ground effect;

(c) the propulsion and steering systems are constantly and entirely controlled by a driver on board the vehicle;

(d) the engine capacity does not exceed 250 cubic centimetres;

(e) it has no suspension and no differential;

“go-kart races” includes a race or trial of speed between go-karts and practising for such races and “go-kart racing” shall be construed accordingly;

“motor vehicle” has the meaning assigned to it by section 190 of the Road Traffic Act 1972;

1972 c. 20.

“owner” has the meaning assigned to it by section 329 of the Highways Act 1980;

1980 c. 66.

“premises” includes messuages, buildings, lands, easements and hereditaments of any tenure;

“protected authority” means the fire authority, the highway authority, the chief constable and a statutory undertaker;

“public gas supplier” has the same meaning as in Part I of the Gas Act 1986;

1986 c. 44.

“the scheduled streets” means the circuit streets and the adjoining streets;

“statutory undertaker” means a public gas supplier, the Yorkshire Electricity Board, the Yorkshire Water Authority, and any person to whom a licence has been granted under section 7 of the Telecommunications Act 1984 for the running of any telecommunication system, as defined in that Act, in the city and to whom the telecommunications code, as defined in that Act, is applied or any of them, as the case may be;

1984 c. 12.

“street” has the meaning assigned to it by section 329 of the Highways Act 1980;

“traffic sign” has the meaning given by section 64 of the Road Traffic Regulation Act 1984.

1984 c. 27.

(2) Any reference in this Act to a proper officer shall, in relation to any purpose and any local authority, be construed as a reference to an officer appointed for the purpose by that authority.

(3) In the case of difference between the description of any of the scheduled streets contained in Schedule 1 to this Act and that scheduled street as shown on the scheduled streets plan, the latter shall prevail.

(4) Schedule 1 to this Act shall be read as if the words “or thereabouts” were inserted after each distance mentioned in that Schedule.

3.—(1) In this Act the expression “authorised day” means such Sunday in August in any year as the Council may as respects that year determine.

Authorised day.

(2) The Council shall give not less than three months’ notice of the day which they propose to determine to be the authorised day under subsection (1) above to the statutory undertakers but the accidental omission to give such notice to any of the statutory undertakers or the non-receipt of such notice by any of the statutory undertakers shall not invalidate a determination of the Council under the said subsection (1).

4.—(1) Subject to the provisions of this Act, the Council may in any year provide or arrange for the provision of go-kart races to be held on the authorised day on the whole or any part of the circuit streets, and may provide or arrange for the provision of all such services and facilities and things (including prizes) and do all such other acts as they may think necessary or convenient for that purpose.

Power to provide go-kart races.

(2) Without prejudice to the generality of subsection (1) above and to section 10 (Provision of stands and facilities for go-kart racing) of this Act the Council shall have power to carry out such works to the scheduled streets as they may think necessary or convenient for the purposes of, or in connection with operating the provisions of, this Act.

Closing of
streets for
go-kart races.

5.—(1) Subject to the provisions of subsections (2) and (3) below the Council may, for the purposes of this Act close to the public or restrict access to the whole or any part of the scheduled streets and may exclude therefrom all or any persons, vehicles, goods and things (including persons seeking to go to or from any premises abutting on any of the scheduled streets and whether or not in exercise or purported exercise of any public or private right of way over any part of the scheduled streets) except with the consent of the Council which the Council may give upon such reasonable conditions as they think fit.

(2) The Council shall not under the powers of this section close any street to pedestrian or vehicular traffic except on the authorised day.

(3) The Council shall ensure that the owner and occupier of premises affected by the closure of, or the restriction of access to, any street or part of a street under the powers of this section shall have free of charge reasonable pedestrian access to and egress from the premises during the period of closure or restriction.

(4) The Council shall ensure that any person attending a place of public religious worship (for the purpose either of such worship or of education) affected by the closure of, or the restriction of access to, any adjoining street or part of an adjoining street under the powers of this section shall have free of charge reasonable pedestrian access to and egress from the place of public religious worship during the period of closure or restriction.

1984 c. 27.

(5) Notice of the closing of streets under this section and of revised traffic arrangements and alternative routes shall be indicated by traffic signs and subsection (1) of section 65 of the Road Traffic Regulation Act 1984 shall have effect as respects the erection and display of the notice by the Council as if it were a notice by a highway authority.

(6) The Council shall—

- (a) not less than two months before closing a street or part of a street under this section cause to be published in a local newspaper circulating in the city notice thereof stating the street or part of a street to be closed and the day during which such street shall be closed to vehicular and pedestrian traffic respectively;
- (b) not later than the date on which such notice is published under paragraph (a) above serve a copy thereof on the highway authority, the statutory undertakers and on the chief officer of police;
- (c) display a copy of such notice in the street or part of a street to be closed in a place where it can conveniently be read by the public for a period of not less than 14 days immediately preceding the closing.

(7) Either—

- (a) a copy of any such newspaper containing any such notice; or
- (b) a photostatic or other reproduction certified by the proper officer of the Council to be a true reproduction of a page, or part of a page, of any such newspaper bearing the date of its publication and containing any such notice;

shall be evidence of the publication of the notice and of the date of the publication.

(8) If any person without the consent of the Council knowingly and without reasonable excuse enters or remains upon any street or part of a street which is closed to him or drives or knowingly causes or permits to be driven a vehicle upon any street or part of a street which is closed to that vehicle under the powers of this section, or without reasonable excuse fails to comply with any condition subject to which the Council have given their consent under this section he shall be guilty of an offence and liable on summary conviction to a fine not exceeding level 4 on the standard scale.

(9) (a) Notwithstanding the closure of any street or part of a street by the Council under the powers of this section an authority to whom this subsection applies may in a case of emergency and in accordance with a code of practice issued or revised under section 19 (Code of practice) of this Act enter upon such street or part of a street with any necessary vehicles, plant and equipment for the purpose of exercising any of their functions in relation to the emergency.

(b) The authorities to whom this subsection applies are the fire authority, the Health and Safety Executive, the highway authority, the chief constable, the Kingston upon Hull Health Authority and any statutory undertaker.

(10) In proceedings for an offence under subsection (8) above, it shall be a defence for the person charged to prove that he took all reasonable precautions and exercised all due diligence to avoid the commission of the offence.

(11) If in any case the defence provided by subsection (10) above involves the allegation that the commission of the offence was due to the act or default of another person, the person charged shall not, without the leave of the court, be entitled to rely on that defence unless, within a period ending 7 clear days before the hearing, he has served on the prosecutor a notice in writing giving such information identifying or assisting in the identification of that person as was then in his possession.

(12) Nothing in this section shall prejudice or affect the operation of any of the relevant statutory provisions as defined in Part I of the Health and Safety at Work etc. Act 1974.

1974 c. 37.

6.—(1) Where a vehicle is at rest without the consent of the Council or otherwise than in accordance with a code of practice issued or revised under section 19 (Code of practice) of this Act on any street which is closed under the powers of section 5 (Closing of streets for go-kart races) of this Act the Council may remove or arrange for the removal of the vehicle to a place which is not on any road.

Removal of
vehicles.

(2) Any person removing a vehicle under subsection (1) above may do so by towing or driving the vehicle or in such other manner as he may think necessary and may take such measures in relation to the vehicle as he may think necessary to enable him to remove it as aforesaid.

(3) While a vehicle is in the custody of the Council in pursuance of this section it shall be the duty of the Council to take such steps as are reasonably necessary for the safe custody of the vehicle and for complying with a request for its return made by or on behalf of its owner.

(4) In this section—

“road” means any highway and other road to which the public has access;

“vehicle” means any vehicle whether or not it is in a fit state for use on roads and includes any chassis or body with or without wheels, appearing to have formed part of such a vehicle, and any load carried by, and anything attached to, such a vehicle.

Road traffic enactments not to apply to closed roads.

7. Subject to the provisions of section 8 (Road traffic regulations) of this Act no enactment relating to road traffic whether passed before or after this Act shall apply to any scheduled street or part of a scheduled street when closed to vehicular traffic under section 5 (Closing of streets for go-kart races) of this Act or to any motor vehicle in any such street or part of a street with the consent of the Council when the street or part is so closed.

Road traffic regulations.
1984 c. 27.

8. In its application to the city, section 14 of the Road Traffic Regulation Act 1984 (which empowers a highway authority to make an order or give a notice temporarily prohibiting or restricting traffic on roads) shall have effect as if after the words "of serious damage to the highway" where those words occur in subsections (1) and (3) respectively there were added the words "or for facilitating the operation of the provisions of the Kingston upon Hull City Council Act 1989":

Provided that no order made or notice given under the said section 14, as applied for the purposes of this Act, shall prevent any statutory undertaker obtaining access to any apparatus with any necessary vehicles, plant and machinery.

Erection of barriers and fences.

9.—(1) For the purpose of preventing danger, injury or damage to persons or property from go-kart racing or of controlling or regulating the movement of pedestrians or vehicles the Council may on the authorised day provide and erect barriers and fences—

(a) on any of the scheduled streets;

(b) on any land belonging to the Council;

(c) (with the consent of the owner and occupier) on or against any premises abutting on any of the circuit streets or on any other land;

and shall remove the same by the end of the authorised day.

(2) For the purposes of subsection (1) above the Council may at any time in, on or under the surface of, any of the scheduled streets provide, maintain, repair, replace and remove sockets or slots or other devices for fixing barriers and fences.

Provision of stands and facilities for go-kart racing.

10.—(1) The Council may on the authorised day provide and erect—

(a) on any of the scheduled streets, seats, stands and structures to enable spectators to watch the go-kart races provided under this Act;

(b) in, on, over or under any part of the scheduled streets such equipment, temporary buildings, footbridges, banners and facilities as they may think necessary or convenient for the purpose of go-kart races under this Act;

and shall remove the same by the end of the authorised day.

(2) The Council may at any time on land belonging to the Council or, with the consent of the owner and occupier, on any other land provide and erect seats, stands and structures to enable spectators to watch the go-kart races provided under this Act.

Charges for admission.

11.—(1) Subject to the provisions of this section the Council may charge such sums as they think fit for the use of any seats, stands or structures provided under section 10 (Provision of stands and facilities for go-kart racing) of this Act for the purpose of watching go-kart races provided under this Act.

(2) The Council may make arrangements for the granting of concessions being either a reduction of not less than 10 per cent. in respect of the payment of charges under subsection (1) above or a waiver of those charges and such

concessions may be granted absolutely or subject to terms, limitations or conditions.

12.—(1) The Council may make byelaws for regulating go-kart races provided under this Act and for regulating vehicular and pedestrian traffic in any street closed under section 5 (Closing of streets for go-kart races) of this Act and for regulating during the relevant period the conduct of persons resorting to or using any of the scheduled streets or any seats, stands or structures provided under section 10 (Provision of stands and facilities for go-kart racing) of this Act. Byelaws.

(2) Before making any byelaws under this section the Council shall consult the chief officer of police, the highway authority and the statutory undertakers.

(3) (a) All byelaws made under this section shall be made according to the provisions of section 236 of the Local Government Act 1972, and the provisions of section 238 of the said Act shall apply to such byelaws. 1972 c. 70.

(b) The byelaws which may be made by the Council under this section may provide for the imposition of a fine not exceeding level 3 on the standard scale for the contravention of any of the byelaws.

(c) The said section 236, in its application to byelaws made under this section, shall have effect as if in subsection (7) of that section, after the word "confirm", where it firstly occurs in that subsection, the words "with or without modification" were inserted.

13.—(1) The Council may upon such terms as to payment or otherwise and conditions as they think fit grant to any person the right to make or exploit by way of trade or business a photograph, film, video recording, sound recording, broadcast or television cable transmission of the whole or any part of go-kart races provided under this Act or of any incident or event connected therewith. Film and broadcasting rights.

(2) In this section—

"the Act of 1988" means the Copyright, Designs and Patents Act 1988; 1988 c. 48.

"broadcast" has the meaning assigned to it by section 6 of the Act of 1988;

"film" has the meaning assigned to it by section 5 of the Act of 1988;

"photograph" has the meaning assigned to it by section 4 of the Act of 1988;

"sound recording" has the meaning assigned to it by section 5 of the Act of 1988;

"video recording" has the meaning assigned to it by section 1 of the Video Recordings Act 1984. 1984 c. 39.

14.—(1) The Council, subject to the Town and Country Planning (Control of Advertisements) Regulations 1984, may upon such terms as to payment or otherwise and conditions as they think fit grant to any person the right— Advertising rights.
S.I. 1984/421.

(a) to display advertisements in or on any barriers, fences, seats, stands, structures, equipment, temporary buildings and facilities provided or erected under section 9 (Erection of barriers and fences) and section 10 (Provision of stands and facilities for go-kart racing) of this Act during the relevant period; or

(b) to display advertisements—

(i) in, on or over any of the scheduled streets;

(ii) with the consent of the owner and occupier in, on or above any premises abutting on any of those streets; or

(iii) with the consent of the owner on any vehicle when in any of those streets;

whilst such street is closed for the purposes of this Act.

(2) In this section "advertisement" includes any structure or apparatus erected or intended only for the display of an advertisement.

(3) This section shall not apply to the display of an advertisement on any vehicle or equipment belonging to or used by any statutory undertaker which is in any of the scheduled streets for the purpose of carrying out the statutory functions of that statutory undertaker.

Compensation.

15.—(1) If any person entitled to an interest in premises suffers damage to or in respect of land or other loss in consequence of the restriction of access to those premises under section 5 (Closing of streets for go-kart races) of this Act the Council shall, subject to the provisions of this section, pay to such person compensation in respect of that damage or other loss.

1961 c. 33.

(2) So far as compensation to which this section applies is properly to be calculated by reference to the depreciation of the value of an interest in land, rules 2 and 4 of the rules set out in section 5 of the Land Compensation Act 1961 shall apply.

(3) Where an interest in land is subject to a mortgage—

- (a) any compensation to which this section applies, which is payable in respect of depreciation of the value of that interest, shall be assessed as if the interest were not subject to the mortgage;
- (b) a claim for any such compensation may be made by any mortgagee of the interest, but without prejudice to the making of a claim by the person entitled to the interest;
- (c) no compensation to which this section applies shall be payable in respect of the interest of the mortgagee (as distinct from the interest which is subject to the mortgage); and
- (d) any compensation to which this section applies which is payable in respect of the interest which is subject to the mortgage shall be paid to the mortgagee or, if there is more than one mortgagee, to the first mortgagee, and shall in either case be applied by him as if it were the proceeds of sale.

(4) In assessing compensation payable to a person under this section regard shall be had to the extent to which that person has been or may be benefited by the holding or the prospect of holding go-kart races in accordance with the provisions of this Act and without prejudice to the generality of the foregoing provisions there shall be set off against any damage or other loss suffered by that person in consequence of the restriction of access to the premises specified in subsection (1) above any increase in the value of an interest in any other premises belonging to the same person which has accrued or will accrue by reason of the holding or the prospect of holding go-kart races in accordance with the provisions of this Act.

(5) Compensation under this section shall not be payable except upon a claim made in writing to the Council within 12 months of the last day when access to the premises is restricted in consequence whereof damage or other loss is claimed to have been suffered.

(6) Any question of disputed compensation under this section shall be referred to and determined by the Lands Tribunal.

(7) Compensation under this section shall carry interest, at the rate for the time being prescribed under section 32 of the Land Compensation Act 1961, from the date of the restriction of access until payment. 1961 c. 33.

(8) In relation to the determination of any such question the provisions of sections 2 and 4 of the Land Compensation Act 1961 and the provisions of any regulations made under that Act shall apply subject to any necessary modifications.

16.—(1) The Council shall be liable in damages, without proof of negligence, if personal injury or damage to a building or goods is caused by the exercise of the powers of this Act. Liability for injury or damage.

(2) For the purposes of the Law Reform (Contributory Negligence) Act 1945, the Fatal Accidents Act 1976 and the Limitation Act 1980 any injury or damage for which the Council are liable under this section shall be treated as due to the fault of the Council. 1945 c. 28.
1976 c. 30.
1980 c. 58.

(3) For the purposes of this section—

“building” includes any structure or erection, and the curtilage of a building, and any part of a building, as so defined;

“goods” includes all chattels personal other than things in action and money.

17.—(1) The provisions of this Act mentioned in subsection (2) below shall only be exercised in relation to a highway in accordance with such reasonable conditions (other than a monetary payment) as the highway authority may require. Saving for certain statutory bodies.

(2) The provisions of this Act hereinbefore referred to are as follows:—

Section 4 (Power to provide go-kart races);

Subsection (1) of section 5 (Closing of streets for go-kart races);

Paragraph (a) of subsection (1) of section 9 (Erection of barriers and fences);

Subsection (1) of section 10 (Provision of stands and facilities for go-kart racing).

(3) (a) If at any time in consequence of the exercise of the powers of this Act any damage or injury shall be caused to any highway or to any apparatus belonging to or maintained by any statutory undertaker all such damage or injury shall be made good by the highway authority or the statutory undertaker, as the case may be, at the expense of the Council.

(b) In this subsection “highway” includes traffic signs, pillars, rails, fences and other things placed on, over or along the highway for the purpose of assisting, warning or directing traffic or safeguarding persons using or crossing the highway.

(4) The Council shall effectively indemnify a protected authority against all claims, demands, proceedings, costs, damages and expenses which may be made or taken against or recovered from or incurred by the protected authority by reason of the exercise of the powers of this Act:

Provided that—

(a) nothing in this subsection shall impose any liability on the Council with respect to any costs, charges, damages and expenses which may be attributable to the act, neglect or default of the protected authority or their contractors or workmen;

(b) the protected authority shall give to the Council reasonable notice of any claim or demand as aforesaid and no settlement or compromise thereof shall be made without the prior consent of the Council.

(5) Any dispute or difference which may arise between the Council and a protected authority under this section (other than a difference as to the meaning or construction thereof) shall be referred to and settled by arbitration.

Application of
Public Utilities
Street Works
Act 1950.
1950 c. 39.

18.—(1) The provisions contained in Part II of, and Schedule 4 to, the Public Utilities Street Works Act 1950 (which regulate the relations between an authority executing a road alteration and undertakers within the meaning of the said Act of 1950 whose apparatus is affected thereby), shall apply in relation to any works executed under the powers contained in the provisions of this Act mentioned in subsection (2) below as if—

- (a) the said works were executed for road purposes and were mentioned in section 21(1)(a) of the said Act of 1950;
- (b) the Council were the highway authority; and
- (c) the said works were executed in a street.

(2) The provisions of this Act hereinbefore referred to are as follows:—

- Section 4 (Power to provide go-kart races);
- Section 9 (Erection of barriers and fences);
- Section 10 (Provision of stands and facilities for go-kart racing).

Code of
practice.

19.—(1) The Council shall issue and may from time to time revise a code of practice containing provisions relating to the discharge of, and consultation in connection with the discharge of, such of their functions under this Act as the Council consider appropriate, and the exercise of the power of entering conferred by subsection (9) of section 5 (Closing of streets for go-kart races) of this Act on the authorities to whom that subsection applies.

(2) The code shall not be issued without the approval of each of the protected authorities and before seeking that approval the Council shall submit a draft of the proposed code to each of them.

(3) Where any of the protected authorities is unwilling to give approval to the draft submitted under subsection (2) above, that authority shall, as soon as practicable, give its reasons therefor to the Council.

(4) If the Council and the protected authorities (or any of them) are unable to agree as to the provisions which should, or as the case may be, should not, be contained in the code, or as to the form which any provisions should take, the question shall be referred to arbitration.

(5) In an arbitration under subsection (4) above it shall be the function of the arbitrator to decide whether the provisions in question should or, as the case may be, should not, be contained in the code and (if the matter is in dispute) the form which the provisions in question should take; and the Council shall not issue the code otherwise than in accordance with the arbitrator's decision.

(6) A failure on the part of the Council or any other authority or person to whom the code applies to observe any provision of the code shall not of itself render the party concerned liable to any legal proceedings but any such failure may in any such proceedings be relied on by any party to the proceedings as tending to establish or to negative any liability which is in question in those proceedings.

(7) In subsections (2), (4), (5) and (6) above the references to the code include a reference to any revision of it.

20. Where under this Act any question or dispute is to be referred to or determined by arbitration the reference shall be to a single arbitrator to be agreed upon between the parties or, failing agreement, appointed on the application of either party to the dispute after notice in writing to the other by the President of the Institution of Civil Engineers.

Arbitration.

21. The written consent of the Director of Public Prosecutions is needed for the laying of an information of an offence created by or under this Act by any person other than a party aggrieved.

Restriction on right to prosecute.

22.—(1) Where an offence under this Act, or against any byelaw made under this Act committed by a body corporate, is proved to have been committed with the consent or connivance of, or to be attributable to any neglect on the part of, a director, manager, secretary or other similar officer of the body corporate or any person who was purporting to act in any such capacity, he, as well as the body corporate, shall be guilty of the offence.

Liability of directors, etc.

(2) Where the affairs of a body corporate are managed by its members, subsection (1) above shall apply to the acts and defaults of a member in connection with his functions of management as if he were a director of the body corporate.

23. The sections of the Public Health Act 1936 mentioned in Schedule 2 to this Act shall have effect as if references therein to that Act included references to this Act.

Application of general provisions of Public Health Act 1936.
1936 c. 49.

24. The Council may after consulting the statutory undertakers at any time arrange for the discharge of any of their functions under this Act by another person or transfer or delegate any such function and in that event the transferee shall have and may exercise to the extent authorised by his instrument of transfer, all or any of the powers conferred upon the Council by or under this Act but shall be subject to all the restrictions, liabilities and obligations in respect thereof to which the Council are subject and shall perform all the functions of the Council conferred by or under this Act in respect of that function:

Power to transfer functions.

Provided that nothing in this section shall authorise the Council to transfer or delegate their functions under the following provisions of this Act:—

Section 3 (Authorised day);

Section 5 (Closing of streets for go-kart races);

Section 12 (Byelaws);

Section 19 (Code of practice).

Section 2.

SCHEDULES

SCHEDULE 1

THE SCHEDULED STREETS

PART I

CIRCUIT STREETS

Alfred Gelder Street	From its junction with Queen's Dock Avenue to a point 80 metres measured in an easterly direction from the eastern kerbline of Lowgate.
Guildhall Road	Its entire length.
Quay Street	Its entire length.
Lowgate	From its junction with the southern boundary of Chapel Lane to its junction with Guildhall Road.
Wilberforce Drive	From its junction with Guildhall Road to its junction with the southern kerbline of Queen's Dock Avenue.

PART II

ADJOINING STREETS

Alfred Gelder Street	From a point 80 metres measured in an easterly direction from the eastern kerbline of Lowgate to its junction with Salthouse Lane and High Street.
Lowgate	From the northern kerblines of Bowlalley Lane and Bishop Lane to its junction with the southern kerbline of Chapel Lane.
Chapel Lane	Its entire length.
Manor Street	From its junction with Land of Green Ginger to its junction with Alfred Gelder Street.
Land of Green Ginger	From its junction with the northern kerbline of Bowlalley Lane to its junction with Manor Street.
Parliament Street	Its entire length.

SCHEDULE 2

Section 23.

SECTIONS OF PUBLIC HEALTH ACT 1936 APPLIED

1936 c. 49.

Section	Marginal note
283	Notices to be in writing; forms of notices, &c.
288	Penalty for obstructing execution of Act.
293	Recovery of expenses, &c.
299	Inclusion of several sums in one complaint, &c.
304	Judges and justices not to be disqualified by liability to rates.
328	Powers of Act to be cumulative.

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